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California Code, Penal Code - PEN § 459

Current as of January 01, 2023 | Updated by [Findlaw Staff](#)

Every person who enters any house, room, apartment, tenement, shop, warehouse, store, mill, barn, stable, outhouse or other building, tent, vessel, as defined in [Section 21 of the Harbors and Navigation Code](#), floating home, as defined in [subdivision \(d\) of Section 18075.55 of the Health and Safety Code](#), railroad car, locked or sealed cargo container, whether or not mounted on a vehicle, trailer coach, as defined in [Section 635 of the Vehicle Code](#), any house car, as defined in [Section 362 of the Vehicle Code](#), inhabited camper, as defined in [Section 243 of the Vehicle Code](#), vehicle as defined by the Vehicle Code, when the doors are locked, aircraft as defined by [Section 21012 of the Public Utilities Code](#), or mine or any underground portion thereof, with intent to commit grand or petit larceny or any felony is guilty of burglary. As used in this chapter, "inhabited" means currently being used for dwelling purposes, whether occupied or not. A house, trailer, vessel designed for habitation, or portion of a building is currently being used for dwelling purposes if, at the time of the burglary, it was not occupied solely because a natural or other disaster caused the occupants to leave the premises.

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